

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2026

BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR.....CHIEF JUSTICE
BEFORE HER HONOR : JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HER HONOR : CEATNEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : BOAKAI N. KANNEH.....ASSOCIATE JUSTICE

Yousef J. Kais of the City of Buchanan, Grand Bassa County,)
Republic of LiberiaAppellant)

Versus)

) Appeal

Her Honor Comfort S. Natt, Resident Judge, National Labor)
Court and Lonestar Cell MTN, through its Chief Executive)
Officer and all its authorized officers of the City of Monrovia,)
Republic of LiberiaAppellee)

GROWING OUT OF THE CASE :

Lonestar Cell MTN, through its Chief Executive Officer and all)
all its authorized officers of the City of Monrovia, Republic of)
LiberiaPetitioner)

Versus)

) Petition for Judicial
Review

Yousef J. Kais of the City of Buchanan, Grand Bassa County,)
Republic of LiberiaRespondent)

Heard: June 9, 2026

Delivered: August 27, 2026

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION OF THE COURT

This case before us on appeal is from a January 13, 2016 ruling of the National Labor Court, presided over by Her Honor Comfort S. Natt, wherein she reversed and set aside the Hearing Officer's ruling in an action of wrongful dismissal against Lonestar Cell/MTN, co-appellee, where the Hearing Officer awarded the appellant, Yousef J. Kais, reinstatement or payment in the sum of United States Eighty-Eight Thousand Nine Hundred Ninety-Nine Dollars and Fifty Cents (US\$ 88,999.50).

The facts culled from the certified records before this Court reveal that the appellant was employed by the co-appellee Lonestar in July 2001, as its Accounts Payable Accountant, and served in several capacities including Accounting Manager, prior to his dismissal on

September 6, 2011, for breach of duty and gross negligence. The appellant's dismissal letter is incorporated herein below:

"September 6, 2011

Mr. Yousef J. Kais
Accounting Manger
Lonestar Communications Corporation
LBDI Bldg., Congo Town
Monrovia, Liberia

Dear Mr. Kais:

For and on behalf of Lonestar Communications Corporation (Lonestar), we take this opportunity to inform you that your services will no longer be needed by Lonestar. As such, your employment with Lonestar as Accounting Manager is terminated effective immediately for cause in accordance with Section 1508(6)(c) of the Labor Practice Law.

Specifically, you committed a serious breach of duty by your gross negligence and lack of ability in the discharge of your duties as Accounting Manager as evidenced by your failure to report to management the accumulation of customer returned checks resulting in substantial financial loss to Lonestar.

To date, your failure to properly and professionally deal with Lonestar bank(s) returned checks of customer(s) has resulted in uncollectible receivables of at least US\$2,528,072.00, and it is likely that the said amount may increase upon further investigation.

The said transactions lend to the conclusion that your negligence in the reporting, reconciliation and handling of funds (checks and cash) paid to Lonestar is a course of conduct that may result in much greater financial loss to Lonestar over and above the amount which is currently known.

As you are fully aware, the aforesaid actions on your part, in addition to being grossly negligent are also inconsistent with and contrary to the expressed policy and instructions of Lonestar.

In this connection, the Labor Practice Law requires payment of your salary only for the month in which you have rendered service. In this regard, you will be paid for the month of September 2011, less any outstanding amount due to Lonestar.

Prior to receiving the herein remuneration, you are required to:

- (a) sign a Release; and
- (b) turn over to the Senior Manager Human Resource Department all Lonestar property in your possession or under your control.

For and on behalf of Lonestar, we extend thanks and appreciation for your services as well as best wishes in your future endeavors.

Very truly yours,

Mazen Mroue
Chief Executive Officer"

The record shows that as the Accounting Manager, the appellant was the deputy head of the Finance Department which made him responsible to coordinate the works and reports of the Head of Accounts Receivables, Mrs. Normanlyn Bendu Mayango and the co-appellee's Bank Reconciliation Accountant, Mr. Ansumana Jallah, as well as managing, controlling and supervising the operations of relevant general accounts, reconciliation of bank accounts statements, handling of funds to include cash and checks as well as reporting the activities of the finance department to the co-appellee's management.

The appellant being dissatisfied with his dismissal and the failure of the co-appellee Lonestar to pay his due benefits after he was cleared by the police, proceeded to file a complaint against the co-appellee Lonestar before the Ministry of Labor then headed by Hon. Varbah Gayflor. In his complaint, the appellant alleged that he was illegally dismissed by the co-appellee on September 6, 2011, after being in its employ for about ten years, commencing July 2001, and occupying the positions of Accounts Payable Accountant (2001 – 2008) and Accounting Manager (2008 – 2011); that prior to his dismissal, he was subjected to an investigation by the co-appellee through the Liberia National Police (LNP) which subsequently cleared him of all charges after thirteen (13) months of investigation. We cite below appellant's letter of complaint to the Ministry of Labor, to wit:

"Yousef J. Kais
Oldest Congo Town
Monrovia, Liberia

November 27, 2012

Honourable Varbah Gayflor
Minister of Labour
Ministry of Labour
United Nations Drive
Monrovia, Liberia

Dear Honourable Minister:

I write to express my compliments and to formally complain the Lonestar MTN Corporation for the illegal treatment meted against me by the Corporation. That is to say I was illegally dismissed by the Lonestar MTN Corporation which is an "UNFAIR LABOUR PRACTICE".

I worked with the Corporation from the 1st day of July, 2001, to the date I was served my letter of dismissal, on the 6th day of September, 2011, and subsequently turned me over to the Liberia National Police for onward investigation. After almost 13 month of investigation, I have been cleared from

further investigation and charges levied against me by Lonestar MTN Corporation dropped and I obtained my final Police Confirmation Clearance.

Despite efforts made by me and my Legal Counsel, to have the Lonestar MTN management settle my benefits have proven futile. It is time that the Corporation that I sacrificed so much for settle my hard-earned benefits for the over one decade of services.

Accordingly, please help me to get my benefits from the Corporation.

Thanks for your co-operation in this regard.

Sincerely yours,

Yousef J. Kais

COMPLAINANT

0776 706706."

Upon receipt of the appellant's complaint, the Minister of Labor forwarded same to the Division of Labor Standards for a formal investigation presided over by Hearing Officer Nathaniel S. Dickerson and which commenced on December 19, 2012.

On July 17, 2015, the Hearing Officer, having heard the testimonies of the parties, entered final ruling in favor of the appellant, awarding reinstatement or payment in lieu thereof in the amount of United States Eighty-Eight Thousand Nine Hundred Ninety-Nine Dollars and Fifty Cents (US\$ 88,999.50) on grounds that the co-appellee Lonestar did not establish sufficient evidence of the appellant gross breach of duty and that the appellant dismissal was absent due process and thereby illegal.

The co-appellee Lonestar excepted to the Hearing Officer's ruling and filed a petition for judicial review before the National Labor Court, contending therein that the Hearing Officer's ruling ran contrary to law and was reversible on grounds that the appellant's summary dismissal was justified given that his conduct amounted to gross negligence and breach of duty on account of his failure to report returned and bounced checks to the management which resulted to huge financial loss to the co-appellee Lonestar; that because the appellant was not dismissed or forwarded to the Liberia National Police on any criminal charge, there was no need to have waited for the conclusion of the investigation by the police prior to dismissing the appellant; and that the Hearing Officer imputed facts not contained in the records and exhibited considerable biases in his ruling in favor of the appellant.

The National Labor Court Judge reversed the ruling of the Hearing Officer noting that the conduct of the appellant constituted gross breach of duty and negligence in performing his responsibilities as an Accounting Manager; that the appellant's dismissal by the co-appellee Lonestar was consistent with the Labor Practices Law given that his conduct amounted to

gross breach of duty resulting to substantial loss to his employer, the co-appellee Lonestar. More so, the Judge concluded that because the appellant was not accused of or charged with any criminal offense but dismissed for negligence and gross breach of duty, the co-appellee Lonestar was not compelled to prosecute the appellant for any criminal offenses before dismissing him, especially where the appellant was not turned over to the police on any specific criminal charges, but rather the co-appellee was interested in the police investigating to find out whether the appellant's grave conduct had any criminal intent. The relevant portion of the National Labor Court Judge's ruling is annexed as follows:

"This Court says that breach of duty is defined as "the violation of a legal or moral obligation; the failure to act as the law obligates one to act; especially, a fiduciary's violation of an obligation owed to another", *Black's Law Dictionary*, Eighth Edition (1999). Breach of Duty is also defined as any violation or omission of a legal or moral duty or the neglect or failure to fulfill the duties of an office or fiduciary employment in a just and proper manner. *Management of Roberts International Airport v. Inz Beyslow* 35, page 637; syl. 3 (1988). 1st Respondent Yousef Kais acts of negligence and failure to perform his responsibilities as Accounting Manager, which was proven by the preponderance of the evidence by the Petitioner/Management at the hearing, constituted a serious breach of duty which the 2nd Respondent the Hearing Officer, Nathaniel Dickerson failed to take into account, and, by ruling in favor of 1st Respondent, Yousef Kais, the said Ruling is tantamount to awarding 1st Respondent, Yousef Kais for his negligence without any legal basis.

We therefore hold the 2nd Respondent the Hearing Officer, Nathaniel Dickerson committed a reversible error when he ruled that 1st Respondent, Yousef Kais dismissal did not meet due process of law because he was summarily dismissed. On the contrary, we hold that the summary dismissal of the 1st Respondent, Kais by the Petitioner/Management for gross breach and negligence of duty was legally justified in accordance with the prevailing law."

The appellant being dissatisfied with the final ruling of the National Labor Court, noted exceptions and sought a review of the ruling of the Labor Court by filing a twenty-count bill of exceptions.

It is important to state at this point, that because the factual occurrences of this case predate the promulgation of the Decent Work Act (2015) which is the current applicable statute governing matters of Labor disputes, and consistent with the principle that laws are not retroactive, the controlling law in deciding the case at bar is the Labor Practices Law, Title 18 of the Liberia Code of Law Revised.

Having done a comprehensive review of the oral and documentary evidence of the certified records before us, and applying same to the 1964 Labor Practices Law, this Court finds two issues pertinent to the determination of this case as follows to wit:

1. Whether the evidence of the proceedings adduced at the Ministry of Labor sufficiently established the appellant's negligence and gross breach of duty?
2. Under the facts and circumstances, whether the National Labor Court reversal of the Hearing Officer's ruling noting that the co-appellee could summarily dismiss the appellant was a reversible error?

In regards to the first issue, examining the evidence in the records from the hearing at the Ministry of Labor, did the co-appellee sufficiently establish the appellant's negligence and gross breach of duty to warrant his dismissal?

Section 1508 (6) of the Labor Practices Law (1964) captioned "*Dismissal of Employees*" provides that an employee is liable for breach of duty where his or her conduct constitutes the following:

- a) An unprovoked assault upon an employee or his agents in the course of or arising out of employment.
- b) Persistent disregard by any employee of the technical measure for the safety of the staff undertakings.
- c) Disclosure by an employee of the technical measures for the safety of the staff undertakings.
- d) Absence of the employee from work for more than ten consecutive days (or more than 20 days over a period of six months) without good cause.
- (e) **Lack of skill or manifest inefficiency of the employee** which makes impossible the fulfillment of his duties under the contract;
- (f) If the employee commits any other serious offence against his obligations under the contract.

In the instant case, the primal substance of the co-appellee Lonestar's contention in its petition for judicial review is that the appellant failed to perform his official duties as an Accounting Manager, he being second in command to the Chief Financial Officer (CFO), and which required him to supervise the Accounts Receivable Supervisor and the Bank Reconciliation Accountant who directly received returned checks and reconciled financial information of the co-appellee. That is, upon the appellant's knowledge and awareness that one of the co-appellee's distributors, Sirr Marketing, had made payment for products received through checks over a period of eight months but these checks had bounced and returned to the co-appellee, he should have reported same to the co-appellee's management; that this negligence of the appellant as Deputy Head of the of the Finance Department and

member of the co-appellee Senior Management team resulted in the loss of an amount above United States Two Million Dollars (US\$2,000,000.00) for which the appellant dismissal is legally justified.

In response to the co-appellee's Lonestar petition, the appellant argued that he could not be held liable for negligence given that during the period reflecting the bounced or returned checks, he was not in charge of reconciliation of the co-appellee's account, as the Chief Finance Officer (CFO) who was his direct boss and head of the Finance Department had routinely required his subordinates, the Account Receivable Supervisor, Mrs. Normanlyn Bendu Mayango, and the co-appellee's Bank Reconciliation Accountant whose responsibilities were among other things, receipt of returned checks and preparation of bank reconciliation reports, to report directly to her on the status of the bank statements and the returned and bounced checks which would then be signed by her and forwarded to the co-appellee's senior management. The appellant further concluded that during this period in review, i.e., January - August 2011, all reconciliation reports were signed by both the co-appellee's bank Reconciliation Accountant and the CFO prior to the CFO's submission to the senior management contrary to the expected procedure of said reports being submitted to him by his subordinates for review before being forwarded to the CFO for approval.

We see that at the Labor Ministry, the appellant testified on his own behalf while the co-appellee Lonestar presented two witnesses: Mrs. Mornjay O. George Pratt, co-appellee's Senior Human Resource Manager and Mr. Ansumama J. Jallah, Bank Reconciliation Accountant. Mr. Patrick J. Massallay, a criminal investigator at the Liberian National Police, was subpoenaed by the appellant to testify based on his knowledge of the case and the nature of the investigation of the parties at the Liberian National Police.

The appellant upon taking the witness stand, testified substantially that he was employed by the co-appellee Lonestar on July 1, 2001, and served the company for approximately twelve (12) years, rising to the position of Accounts Manager in the Finance Department; that as the Accounting Manager, he reported directly to the Chief Financial Officer (CFO), and his duties included supervising the co-appellee's Bank Reconciliation Accountant and reviewing monthly bank reconciliation reports before their submission to the CFO; that in late August 2011, the CFO informed him that several checks issued by one of the company's major distributors had been returned unpaid by the bank, and the co-appellee management subsequently met with the distributor who acknowledged responsibility for the returned checks and agreed that portions of its commissions should be applied toward satisfying the outstanding obligations.

The appellant further stated that on September 2, 2011, he was informed that an internal disciplinary investigation involving the Accounts Receivable Officer Mrs. Normalyn B. Mayango was being conducted wherein he might be required to provide clarification; that although he was not later called to participate in the investigation, the co-appellee management terminated his employment on September 6, 2011, for what it described as gross negligence of duty, on grounds that the appellant had failed to report the existence of uncollected or bounced checks to the CFO, and had instructed subordinate employees to channel all communications through him rather than directly to the CFO, and thereby negligently allowed losses estimated at over Two Million United States Dollars (US\$2,000,000.00) to accrue; and that the appellant conduct constituted serious misconduct under co-appellee's Disciplinary Code of Conduct which warranted his summary dismissal.

In concluding his testimony, the appellant stated that immediately following his dismissal, he was requested to surrender all co-appellee Lonestar's property in his possession and was thereafter turned over to the Liberia National Police where he underwent two separate investigations for several months after which he received a final Police Confirmation Clearance on October 30, 2012, releasing him from further investigation after finding no basis to pursue any criminal allegations against him; and that following his exoneration, he demanded payment of his employment benefits for his years of service with the co-appellee, but based on the co-appellee refusal to adhere to said demands, he proceeded to the Ministry of Labor where he instituted an action of unfair labor practices and illegal dismissal on November 27, 2012. The appellant further maintained that he neither concealed the existence of the returned checks nor committed any act of gross negligence, emphasizing that his clearance by the Liberia National Police validates his claim of unfair labor practice and wrongful dismissal by the co-appellee.

Upon the completion of the appellant's testimony, Mrs. Mornjay O. George Pratt, co-appellee first witness testified that the appellant was employed July 1, 2001, with the co-appellee Lonestar and later appointed as its Accounting Manager; that this position automatically made him the second man in command within the Finance Department, which meant that he received reports directly from all other staffs in the Finance Department and was required to report same to the Chief Financial Officer (CFO); that on September 6, 2011, the appellant was dismissed for gross negligence of duty based on his failure to report uncollected checks and financial information he received to the CFO and the co-appellee senior management although same had been reported to him through email by Mr. Ansumana S. Jallah, the co-appellee's Bank Reconciliation Accountant, whom the appellant directly supervised and whom he had instructed not to submit any report to the Chief Financial Officer (CFO) but that

same should be made through him; that because said negligent conduct of the appellant was carried out for several months, the appellant's failure to act or provide a financial information to co-appellee Lonestar's management in an effort to take corrective actions in preventing said distributor from receiving products, same resulted to the co-appellee Lonestar experiencing substantial financial losses over a period; and that upon discovery of said conduct, the co-appellee Lonestar management initiated an internal investigation against the Account Receivable Supervisor consistent with its Code of Conduct, but given the gravity of the appellant's conduct, the hearing was suspended and both the appellant and Accounts Receivable Supervisor were dismissed.

After the co-appellee's first witness exited the witness stand, Mr. Ansumana S. Jallah, the co-appellee's second and final witness took the witness stand and testified that being employed with the co-appellee as its Bank Reconciliation Officer on December 1, 2009, and with the appellant being his immediate boss, he was responsible for all Bank Reconciliations of the co-appellee books and its monthly Bank Statements, submitting said report to the appellant for onward submission to the Chief Financial Officer; that he was initially tasked to receive and handle all bounced checks from the banks and subsequently forward same to the appellant, but sometime in August 2010, his tasks of handling bounced checks were reassigned to the Accounts Receivable Department after the appellant wrote a letter to the designated Bank with instructions that all bounced checks be submitted to the Accounts Receivable Department headed by Mrs. Nomalyn Bendu Mayango or Olive Nancy; that from that point onward, he was only permitted to do reconciliations, reporting these bounced checks as outstanding item; that based on a request made by the appellant to the finance department on July 11, 2011, a shared folder was consequently created through which he and the appellant had access to view all reconciliation reports after which the appellant would review and forward same to the (CFO) for signing.

The co-appellee witnesses concluded their testimonies by stating that the appellant failed to discharge his supervisory responsibilities by his consistent refusal to report returned checks to the co-appellee management, he having directed that all communications concerning the bank's reconciliation process be routed through him instead of being forwarded directly to the CFO.

For his part, the appellant's subpoenaed witness, Patrick J. Massallay, testified in essence that based on his involvement with the police investigation which originated from a complaint filed by the co-appellee Lonestar, the records of investigation indicated that the co-appellee Bank Reconciliation Officer, Mr. Ansumana Jallah, had testified that he was instructed by the

CFO prior to January 2011, to report all reconciliation details and outstanding items originating from returned checks directly to her, which statement according to witness Massallay was authenticated by signatures on the Monthly Bank Reconciliation Reports where only the signatures of the co-appellee's Bank Reconciliation Officer and the CFO were seen, and he had made statements contrary to this fact during his own testimony at the Ministry of Labor.

The factual accounts narrated above formed the basis of the administrative proceedings before the Ministry of Labor which was subsequently reviewed by the National Labor Court, and has ultimately appeared before us on appeal.

This Court has opined in several of its Opinions that a breach of duty is the breaking or violation of a law, right, duty, either by commission or omission of legal or moral duty or the failure to fulfill the duties of an office or fiduciary employment in a just and proper manner. *His Honor Worjilor et al v Save the Children-UK*, Supreme Court Opinion, October Term 2015; *The Management of Roberts International Airport v Beyslow*, 35 LLR 637 640 (1988).

It is the law extant in our jurisdiction that for an employer to prevail in dismissing an employee on account of gross negligence or breach of duty, said employer must present sufficient and corroborating evidence which establishes the employee's wanton disregard for legal and moral obligation to his employer, or the employee's failure to execute the duties of his office or fiduciary employment consistent with his term of employment.

The records reveal that from January- August 2011, the period during which the subject checks were reportedly bounced and returned to the co-appellee's bank, we observe frequent communication between the CFO and Mrs. Normalyn Bendu Mayango, the appellee's Accounts Receivable Supervisor about the status of returned and bounced checks, as well as the CFO directives as to how checks should be handled by the department prior to and after the discovery of the avalanche of bounced checks in the possession of the Accounts Receivable Supervisor. These requests for updates and subsequent directives regarding the handling of said checks were dictated by the CFO to Mrs. Bendu Mayango, and Olive as well as Mr. Ansumana Jallah, the appellee's Bank Reconciliation Accountant throughout the stated period. Nowhere in the record do we see said requests being made directly to the appellant given his position as the Accounting Manager and deputy head of the finance department and for which he communicated his dissatisfaction in the email below, sent to Jallah, the co-appellee's Bank Reconciliation Accountant:

From:Yousef J. Kais [MTN- Liberia]

Sent: Thursday, February 24, 2011 5:44 PM

To: Ansumanah Jallah [MTN- Liberia]
Cc: Otto A. Nabie [MTN- Liberia]; Lungile Nxumalo [MTN- Liberia]
Subject: RE: Finding of Documents (AR)

Ansu,

You need NOT bother/copy the CFO on routine work related follow-up transactions. She is much occupied with more senior managerial responsibilities and that's why I am your line Manager. What I have told you repeatedly is firstly provide me notifications of constraint/delays in your work execution and I will enforce remedy. Issues for elevation to the CFO is my responsibility, Pls take note. Filing has been an issue in both the A/P and A/R since migration to the new system and currently a filing review process is ongoing to resolve that. You'll need to be a part of it.

Regards,
Yousef

The following testimony of the appellant on cross-examination revealed his frustration with the manner in which he was overlooked by the CFO in the handling of accounts in his department where he served as second in command with terms of reference to supervise all other staff of the Finance Department except for the CFO to whom he was required to report directly.

CROSS EXAMINATION:

Q. Since according to you, your boss did not respect the organizational report system, please tell this Investigation whether you ever made this as a matter of record, that is to say, did you ever document these concerns?

A. On two occasions I can remember, while in the Office of the CFO, a subordinate of mine carried a transaction document which should have been approved by me to the CFO. I insisted that that document should have first obtained my review and signature before her. She harshly responded to me in her word that this Department is my responsibility and that anyone that I assigned a task and gets my signature should not be your problem and in fact, she asked me out of her Office because she said that I disrespected her. The CFO is my boss and my employer; as such, I cannot question her judgment and decision because doing so could be tantamount to dismissal. On other occasion, I circulated instruction to my subordinates, informing them that their works should first be validated by me before submitting it to the CFO. Their response most time was that the CFO asked them to do the assignment and take it directly to her Office.

The below statement of MADAM LUNGILE NXUMALO, the co-appellee's CFO, further corroborated the appellants statement that he was not in control of reconciliation relating to returned checks as seem was exclusively handled by the CFO, the co-appellee Bank Reconciliation Account Manager and the Accounts Receivable Supervisor.

**STATEMENT BY MADAM LUNGILE NXUMALO, CHIEF FINANCIAL OFFICER,
LONESTAR COMMUNICATIONS CORPORATION DATED THE 22ND DAY OF
MARCH, 2012, TO THE LIBERIA NATIONAL POLICE REGARDING THE ISSUE
OF RETURNED CHEQUES.**

On the weekend of the 20th August, 2011, I took the balance sheet analysis file home with the intention to review the balance sheet reconciliations. On Sunday, the 21st, whilst reviewing the bank reconciliations, I noticed a few big deposits that had not cleared in the UBA Bank reconciliation. I made a note to enquire why these items had not cleared.

On Monday, I took the recon to the Bank Reconciliations Accountant, Ansumanah Jallah. I enquired why these items had not cleared and he informed me that these were returned cheques.

I enquired why they were classified under deposits not credited by the bank instead of being separately classified as returned cheques. He told me that it never occurred to him to do that. I requested him to amend the reconciliation by segregating all the returned cheques from the deposit not credited by the bank.

I called the Head of Accounts Receivables, Normanlyne Bindu Barclay and informed her that it had come to my attention that we had returned cheques in the system and enquired if she had returned cheques in her possession. She confirmed that she did have a few returned cheques; further she stated that because she had been telling me she did not have returned cheques, it became difficult for her to admit that she had returned cheques.

Bindu then gave me 12 returned cheques, these were copied. because the bank's reconciliations for July and August, 2011 had not been done, I requested Ansu to complete the reconciliations so that we could ascertain the extend of the returned cheques issue. the reconciliation was sort of concluded on the week-end of 26th – 27th. At that point, we then understood the extend of the problem. when the CEO called me on Monday, 28th, he enquired if there were abnormal activities in the department; that at that point, I then told him about the returned incident. the instruction was to remove Bindu from Accounts Receivable. Bindu was charged for negligence. I can't remember if there were other charges and her disciplinary hearing was scheduled for that Friday. The hearing was not concluded as management made a decision to terminate the employment of Bindu and Yousef Kais and handed over the matter to the police.

The above statement of the CFO to the Liberia National Police supports the appellant's claim that he was not in charge of financial activities regarding returned and bounced cheques been reported by the co-appellee bank to the Account Receivable Supervisor. The CFO, making inquiries to the Bank Reconciliation Accountant regarding her discovery of outstanding cheques instead of the appellant, confirms the contention that the appellant was

not in charge of returned checks and was therefore wrongfully dismissed for alleged negligence and breach of duty.

In further substantiation of his claim of wrongful dismissal, appellant provided further evidence of several reconciliation reports during the stated period which were duly signed by the CFO and the co-appellee's Bank Reconciliation Accountant with no input from him, and which indicates that his subordinates in the finance office dealt directly with the CFO. Below are three of the several "Reconciliation Reports" under the signature of Ansumana Jallah and the CFO with no signature of the appellant to demonstrate his involvement.:

Bank Reconciliation

Date: February 28, 2011

Company: 03-Mar-11

Bank: UBA

Books Account #: 000-946500-4603

Bank Account No: 53010030001603

Currency: USD

Balance per Bank on 28-February-2011	4,873,363.41
ADJUSTMENTS:	
Deposit in transit:	871,270.79
Outstanding Checks:	(358,575.00)
Bank Errors:	
Adjusted/Corrected Balance per Bank	5,386,059.20
Balance per Books on 28-February-2011	6,274,251.30
ADJUSTMENTS:	
Bank Service Charges:	-
Debited by the bank but not credited by us:	(891,599.10)
Check Printing Charges:	-

Credited by the bank but not debited by the us:	3,407.00
Errors in Company's Cash Account:	-
Adjusted/Corrected Balance per Books	5,386,059.20

Prepared By

Ansumanah S. Jallah

Approved By:

Lungile Nxumalo

Signature

/s/

Signature

/s/

Date

March 3, 2011

Date

March 3, 2011

Bank Reconciliation

Date: March 31, 2011

Company: 09-Mar-11

Bank: UBA

Books Account #: 000-946500-4603

Bank Account No: 53010030001603

Currency: USD

Balance per Bank on 31-March-2011	4,081,288.45
ADJUSTMENTS:	
Deposit in transit:	871,565.79
Outstanding Checks:	(707,442.71)
Bank Errors:	
Adjusted/Corrected Balance per Bank	4,245,411.53
Balance per Books on 31-March-2011	5,366,697.99

ADJUSTMENTS:	
Bank Service Charges:	-
Debited by the bank but not credited by us:	(1,124,347.46)
Check Printing Charges:	-
Credited by the bank but not debited by the us:	3,061.00
Errors in Company's Cash Account:	-
Adjusted/Corrected Balance per Books	4,245,411.53

Prepared By

Ansumanah S. Jallah

Approved By:

Lungile Nxumalo

Signature

____/s/____

Signature

____/s/____

Date

March 9, 2011

Date

March 9, 2011

Bank Reconciliation

Date: March 31, 2011

Company: Lonestar Communications Corporation

Bank: LBDI

Books Account #: 000-946500-4605

Bank Account No.: 221215449801

Currency: USD

Balance per Bank on 31-March-2011		69,171.19
ADJUSTMENTS:		
Deposit in transit	300,363.09	
Outstanding Checks	(218,046.00)	
Bank Errors		
Adjusted/Corrected Balance per Bank		141,488.19

Balance per Books on 31-March-2011		141,885.19
ADJUSTMENTS:		
Bank Service Charges	(397.00)	
Debited by the bank but not credited by us		
Check Printing Charges		
Credited by the bank but not debited by us		
Errors in Company's Cash Account		
Adjusted/Corrected Balance per Books		141,488.19

Prepared By: Ansumanah S.
Jallah

Signature:
____/s/_____

Date: April 7, 2011

Approved By: Lungile Nxumalo

Signature:
____/s/_____

Date: April 7, 2011

We also find in the records, email exchanges between the CFO and Madam Mayango wherein the CFO presents her disappointment in the manner and form in which Mrs. Mayango had been reporting issues of returned checks or being notified of the returned checks. All these were directed at the Mrs. Mayango and Olive, the AR Supervisor and AR Officer until the period of said discovery.

“From: Lungile Nxumalo (MTN-Liberia)
Sent: Tuesday, August 23, 2011 2:50 PM
To: Normanlyne B. Barclay-Mayango (MTN-Liberia)
Cc: Yousef J. Kais (MTN-Liberia)
Subject: FW: Returned Checks

Hi Bindu,

I requested you to provide a report on a monthly basis (even provided template). To date I have never received any report. The few times I enquired about returned checks, and you said there were none. Please provide explanation.

Regards,

Lungile Nxumalo
Chief Financial Officer: Finance Department”

"Chief Financial Officer: Finance Department

Email from: Lungile Nxumalo

Subject: Returned Checks

Date: December 15, 2009 8:45 PM

To: Normanlyne B. Barclay; Olive M. Swen; Christie K. Mature

Cc: Yousef J. Kais

Y,ello,

If we received a "refer to drawer Check" from the bank, let us make it a procedure to first contact the drawer to inform /her about the RD cheque and let them tell us what to do.

Regards,

Lungile Nxumalo

Chief Financial Officer: Finance Department"

These emails exchanges, as we have seen from the records, support the appellant's claim that although he was responsible for supervising the Account Receivables Section as per the organogram of the Finance Department, he was not in charge of their activities with respect to the reporting of returned/bounced checks as same had been directly handled by and between the CFO and Mrs. Normanlyn Bendu Mayango. The question we then ask is how can the appellant be held liable for breach of duty or gross negligence for a function that had been delegated to someone else? As we have seen in the records, the CFO had delegated the task of accepting, tracking and reporting returned checks by all indications to the Account Receivable Section and exclusively supervised said operations without the input or involvement of the appellant.

This Court finds it necessary to comment on the appellant's testimony during the investigation before the Hearing Officer that he was informed by the co-appellee's CFO that based on an agreement between the co-appellee Lonestar and SIRR Marketing relating to the bounced and returned checks, a total of 3% deductions from the distributor's commission would be made against the loss, and that SIRR Marketing had initially made a deposit of about United States Two Hundred Thousand Dollars (US\$ 200,000.00) to said effect, thereby taking responsibility of the financial loss. This act, the appellant alleges, crushes the liability of any of co-appellee's employee, including the appellant, on grounds of negligent breach of duty, so that his dismissal for negligent breach of duty for said loss was unjustified. Below is the email directive from the CFO to this effect:

"From: Lungile Nxumalo [MTN- Liberia]

Sent: Monday, August 29, 2011 10:39 PM

To: Olive M. Swen-Nimely [MTN- Liberia]

Cc: Sabah Jomah [MTN- Liberia], Yousef J. Kais [MTN- Liberia]

Subject: FW: SIRR Marketing

Hi Olive,

Effective from tomorrow until further notice, SIRR Marketing is not allowed to pay by cheque, all SIRR marketing payments should be by cash.

Secondly, SIRR Marketing will be given only 9% discount instead of the normal 12%. The balance of 3% will be used to cover the outstanding balance caused by returned checks. Yousef will provide further instruction on the accounting treatment.

Regards,

Lungile L. Nxumalo
Chief Financial Officer: Finance Department
Lonestar Cell | Member of the MTN Group."

The Court is not persuaded by this argument advanced by the appellant that the co-appellee having settled with SIRR Marketing, he can be absolved from losses incurred from negligence or breach of duty once established. The Court has held that employment is contractual relationship built upon a foundation of mutual trust; while the employer is obligated to provide a safe and fair working environment, the employee is equally duty-bound by an implied covenant of loyalty, competence, and professional care. *Management of Access Bank v. His Honor Judge Kollie et al*, Supreme Court Opinion, October Term, A.D 2025. We think that an employee cannot claim any innocence for alleged liability for negligent breach of duty on the mere fact that the loss resulting from said liability had by default been cured by the subsequent agreement and negotiations between its employer and a contracting party. So far as an employee's conduct amounted to gross abandonment of his duties, negligence is imputed to said employee and any future remedies adopted by the employer does not absolve the employee of guilt resulting from damages borne out of his derelict conduct which could have been abated had the appellant performed his duties consistent with his assigned obligations as per his approved Term of Reference. This Court has also held that it is incumbent upon an employee to apply skill, attention and diligence necessary to protect the interests of his employer and that an employee inability to meet the technical, ethical and professional standards required of his position constitute a breach of his fundamental duty.

However, for this court to reach a conclusion of holding the appellee liable the evidence in the records must be sufficient to establish his negligence or breach of his duty as required by the terms of his employment.

Evidence from the records reveal that the appellant received consistent promotions over the period of his employment and won several merits-based awards, including annual

performance bonus payment and a consistent yearly salary increment pursuant to ratings dictated by the co-appellee Lonestar's Employee Performance Review. In fact, the appellant had placed in evidence an awarded certificate as a star performer for outstanding performance and valuable contribution earned from the co-appellee Lonestar and signed by the Chief Executive Officer as well as its Chairman of the Board of Directors.

From the weight of the evidence adduced by the parties, we are obliged to concede to the appellant's account of not being in charge of tracking returned and bounced checks given that against the appellant's protest and in wanton breach of administrative policies governing the Finance Department the CFO insisted on assigning said task to the appellant's subordinates who were expected to report issues of bounced and returned checks directly to her (CFO). We hold that the appellant cannot be held liable for any default emanating therefrom as he was not in charge of said function during the stated period.

We therefore hold that the co-appellee did not sufficiently establish by preponderance of evidence that the appellant was negligent in light of the evidence adduced during the hearing which showed that the appellant was not in charge of the functions of reconciling bounced and returned checks during the period – January -August 2011- and for which the failure to report the checks should be attributed to him as negligence or breach of duty. It is therefore our considered view that the appellant conduct herein constitutes no semblance of breach of his duty and his dismissal based on same is therefore unjustified.

The appellant advanced the position that because he was dismissed absent an investigation, said dismissal was illegal on grounds that it violated his fundamental right to due process. The co-appellee Lonestar countered this position by stating that because the appellant conduct which amounted to negligence or breach of duty had resulted to financial losses against its operations, the summary dismissal of the appellant was within the ambit of the applicable laws governing labor relations in Liberia.

In reversing the ruling entered by the Hearing Officer, the Judge of the National Labor Court cited the case *National Port Authority v Peabody* (1998) and concluded that the dismissal of the appellant by co-appellee Lonestar was legally sound and consistent with law as the appellant's conduct amounted to negligence and gross breach of duty which resulted to substantial financial loss to his employer.

We find that although the similarity of a substantial loss to the employer exists in both cases, the employee in the NPA case was fully in charge of handling the employer's account, and the investigation and evidence showed that his conduct resulted in the loss to the NPA. In

the instant case, however, the loss to the co-appellee Lonestar cannot be attributed to the appellant who was not in control of the reporting of bounced and returned checks as seen from the evidence gathered from the hearing at the Ministry of Labor. That is, the appellant's duty in supervising the management of said activity was interfered with by the co-appellee's CFO who delegated the said duty to the appellant's subordinate and had her report directly to her, the CFO.

Assuming however the loss incurred by the co-appellee was attributable to appellant's breach of duty, we fail to accept the Labor Court Judge's ruling that an investigation was irrelevant because of the huge loss occurred by the co-appellee. This ruling runs contrary to the controlling law under which the appellant was dismissed, same being Section 1508 of the Labor Practices Law (1964) quoted below:

Section 1508: Dismissal of Employees.

3. Where the contract is concluded between the employer and the employee for an indefinite period, the employer shall have the right to dismiss the employee on condition that he gives him two weeks written notice in the case of non-salaried employee and *four weeks written notice in the case of salaried employee or payment in lieu of such notice.*
4. The period of notice shall begin to run on the first day of the pay period next following that in which the notice was served.
5. Notwithstanding the provision of Section 1508 of this Chapter an employer may dismiss an employee engaged for an indefinite period without notice, subject to payment only of wages due, **where it is shown** that the employee has been guilty of a serious breach of duty.

From section 5 of the citation above, the language of the statute is unambiguous as it emphasizes that there must be a showing that the dismissed employee was actually negligent or breached his duty which could only be established by an investigation.

As stated by the appellant in his testimony which was confirmed by the CFO in her statement to the police, although the co-appellee Lone Star notified the appellant of an ongoing disciplinary investigation involving the Accounts Receivable Officer Mrs. Normalyn B. Mayango and informed him that he might be required to provide clarification, such clarification was never made as the reference investigation was abandoned on grounds that huge losses had resulted from the alleged breached and therefore co-appellee Lonestar had the appellant and the Accounts Receivable Officer, Mrs. Normalyn B. Mayango, dismissed.

This Court has held that due process is fundamental to protecting individual rights and freedoms which extend to every governmental proceeding, whether judicial or administrative, as it is the opportunity for a party accused of an offense or charged thereto to be heard and to confront his/her adversary such that no judgment or decision is binding except same is an outcome of a hearing or investigation consistent with due process. *Firestone Liberia v Kolleh*, Supreme Court Opinion, March Term 2021; *Davis & Sayeh v Liberia Telecommunication Authority*, Supreme Court Opinion, March Term 2016; *LOIC v Williams* 42 LLR , 275, 289 (2004); *United Liberia Rubber Corporation v McCauley*, 29 LLR 342, 347 (1989).

We also find in the records copies of the co-appellee's own Human Resource Manual which provides the grounds for various disciplinary actions against employees for underperformance as well as misconduct prior to instituting disciplinary actions to include dismissals. This procedure was not followed in this case and it is therefore our holding that the co-appellee Judge ruling finding that the loss to the co-appellee warranted summary dismissal is reversible as it runs contrary to the applicable provisions of the Labor Practices Law (1964) as well as to the relevant Opinions of this Honorable Supreme Court. And we so hold.

After all we have said in this Opinion, we are of the view that the charge of breach of duty for negligence was not supported by sufficient evidence, and the subsequent dismissal of the appellant absent any investigation was a violation of the appellant constitutional right to due process. We, therefore, on the strength of all oral and documentary evidence contained in the records and supportive of the legal soundness of the Hearing Officer's ruling, reverse the ruling of the National Labor Court Judge overturning the ruling of the Hearing Officer of the Ministry of Labor with modification as to the computation of the amount due to the appellant on account of his wrongful dismissal.

The Hearing Officer having concluded that the appellant was wrongfully dismissed, he awarded a total monetary compensation of United States Eighty-eight Thousand Nine Hundred Ninety-Nine Dollars and Fifty Cents (US\$ 88,999.50). His award is not supported by the Labor Practices Law as well as the decisional law which governed awards in labor matters.

This Court interpreting Chapter 1, section 9 of the Labor Practices Law (1964) in the case *United States Trading Company v. Sackie*, 42 LLR 243 (2004), held that an employee found to have been wrongfully dismissed is entitled to reinstatement or, at the election of the employer, reasonable compensation in lieu thereof, to be assessed with regard to the

employee's reasonable expectations under the contract of employment and length of service. In the instant case, the appellant had served the co-appellee for a period of ten years at the time of his wrongful dismissal, and his last monthly salary was Three Thousand Five Hundred Fifty-Nine United States Dollars (US\$3,559.00). Applying the standard adopted in *Sackie*, wherein employees with ten to fourteen years of service were awarded nineteen months' salary in lieu of reinstatement, this Court holds that the appellant, having served the co-appellee for ten years, that is from July 2001 - September 2011, and there being no evidence that the dismissal was proper, he is entitled to compensation equivalent to nineteen (19) months' salary, which when computed at the appellant's last monthly salary of US\$3,559.00, would amount to Sixty-Seven Thousand Six Hundred Twenty-One United States Dollars (US\$67,621.00).

WHEREFORE AND IN VIEW OF THE FOREGOING, the final ruling of the National Labor Court is hereby reversed and the Hearing Officer ruling reinstated with modification that the appellant be paid United States Sixty-Seven Thousand Six Hundred Twenty-One Dollars (US\$67,621.00) for his wrongful dismissal. The Clerk of this Court is ordered to send a Mandate to the National Labor Court ordering the Judge presiding therein to resume jurisdiction over this case and enforce the Judgment emanating from this Opinion. Costs are ruled against the co-appellee Lonestar. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR VIAMA J. BLAMA OF THE NATIONAL EDUCATOR LAWYERS ASSOCIATION OF LIBERIA APPEARED FOR THE APPELLANT. COUSELLOR STEPHEN B. DUNBAR, JR. OF THE DUNBAR AND DUNBAR LAW OFFICES APPEARED FOR THE APPELLEE.